

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Cory Sanders,

Plaintiff,

- against-

The City Of New York, Police Officer Emory McClaney,
Shield No. 27699, Detective Anthony Pagnotta, Shield No.
5330, Sgt. Scott Miller, And John Does #1-7,Defendants.
-----X

Filed: _____

Index No.:

Plaintiff designates
KINGS County
as the place of trial.The basis of venue is:
The situs of occurrence

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
February 28, 2019The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.**LIAKAS LAW, P.C.**

BY: Nicholas Mindicino, ESQ.

*Attorney for Plaintiff*65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765**Failure to respond, a judgment will be against you, by default and interest from March 24, 2017.**Defendants:City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007Officer Emory McClaney; Shield No. 27699, Detective
Anthony Pagnotta, Shield No. 5330, Sgt. Scott Miller,
NYPD 88th Precinct, 298 Classon Ave, Brooklyn, NY
11205

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
Cory Sanders,

Index No.

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Police Officer Emory Mcclaney,
Shield No. 27699, Detective Anthony Pagnotta, Shield No.
5330, Sgt. Scott Miller, And John Does #1-7,Defendants.
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Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 and the laws of the State of New York for the violation of his right to be Free of Unreasonable Search and Seizure under the Federal and New York State Constitutions.

2. The claim arises from a March 24, 2017 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION AND VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of

Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the Defendant neglected and/or refused to make any adjustment and/or payment.

6. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County.

PARTIES

7. Plaintiff, Cory Sanders (hereinafter "Plaintiff"), is a legal resident of the United States, residing in the State of New York, Kings County.

8. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Police Officer Emory Mcclaney, Shield No. 27699, Detective Anthony Pagnotta, Shield No. 5330, and Sgt. Scott Miller Detective were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendants Mcclaney, Pagnotta and Miller were involved in the

illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of their fellow officers. Defendants McClaney, Pagnotta and Miller are sued in their individual capacity.

10. John Does #1-7 are individuals whose name are currently unknown to plaintiff, are employees of the NYPD, and are sued in their individual capacities. John Does #1-7 were NYPD officers who participated in the search and arrest of plaintiff as described below.

11. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York

FACTUAL ALLEGATIONS

12. On March 24, 2017, at approximately 6:00 a.m., Plaintiff, was a visitor at the residence located at 79 North Oxford Walk, Apartment 5D, Brooklyn, NY.

13. Apartment 5D is a two bedroom apartment, with the two bedrooms separated from the entrance and living area by a hallway.

14. Plaintiff was in the living area of the apartment when the incident began.

15. Defendants, Police Officers McClaney, Pagnotta, Miller and John Does #1-7, kicked open the apartment door and entered with weapons drawn.

16. Plaintiff did not reside at the subject apartment, and upon information and belief the defendant officers had no factual basis to infer his residence therein.

17. Defendant officers yelled at Plaintiff to get on the floor.

18. Plaintiff was complying with the order when he was pushed chest and face first onto the floor by Defendant, McClaney.

19. Plaintiff was subsequently handcuffed behind his back and McClaney placed his knee on Plaintiff and searched him.

20. McClaney found Plaintiff's ID and keys, as well as his phone, which was already on the floor.

21. Defendants then searched the house.

22. Defendants purported be looking for a man named Devonte Green, whom they had a photograph of.

23. It was immediately obvious to the defendant officers that the man they were looking for, and whom they had a photograph of, was no in the apartment. They nevertheless continued to detain plaintiff and another man, and searched the apartment.

24. Plaintiff was searched a second time by the officers.

25. No contraband was recovered from Plaintiff's person.

26. No contraband was recovered from the living area of the apartment, the only area Plaintiff was located in at any relevant time.

27. Defendants would later allege that they recovered contraband during their search of other areas of the apartment.

28. There was no factual basis from which the defendant officers could infer plaintiff's possession or constructive possession of any contraband, including the contraband allegedly recovered from other areas of the apartment which were concealed to Plaintiff.

29. Upon arriving at the 88th Precinct, Plaintiff was placed in a holding cell, then questioned by Detective Pagnotta. During that questioning Detective Pagnotta was aware that no contraband was recovered from plaintiff, nor from any area over which he could be said to have constructive possession. He nevertheless allowed the detention of plaintiff without probable cause to continue.

30. After being questioned, Plaintiff was subjected to a strip search at the precinct.

31. During the course of the strip search, John Doe #1 used excessive and unnecessary force

against Plaintiff.

32. Plaintiff was eventually taken to Brooklyn Central Booking and arraigned on charges of possession of a controlled substance. Plaintiff was released on his own recognizance.

33. Upon release, Plaintiff sought medical attention for injury to his head, which was caused by the excessive force used against Plaintiff during the initial entry into the apartment and/or during the strip search at the police precinct.

34. Plaintiff was required to appear in Kings County Criminal Court many times before the case was ultimately dismissed on December 18, 2017.

35. Defendant McClaney was the arresting officer for plaintiff. Upon information and belief, Defendant McClaney took plaintiff into physical custody, processed his arrest, prepared arrest paperwork related to his arrest, and coordinated with the District Attorney's office related to the prosecution of plaintiff.

36. Sgt. Miller personally participated in the arrest of plaintiff and approved paperwork related to the arrest.

37. McClaney and Miller understood that the arrest paperwork they drafted/approved would be distributed to fellow officers as well as the District Attorney's office, and used to determine what if any charges should be brought against plaintiff.

38. McClaney personally communicated a representative of the District Attorney's Office, and presented false evidence to the prosecutor despite knowledge that this information would be used to prosecute Plaintiff.

39. As a direct and proximate result of the malicious and outrageous conduct of Defendants set forth, Plaintiff suffered injuries and damages including emotional trauma.

DAMAGES

40. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- b. Violation of his rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Violation of his New York State Constitutional right under Article 1, Section 6 to Due Process of Law;
- d. Violation of his New York State Constitutional right under Article 1, Section 12, to be free from unreasonable searches and seizures;
- e. Loss of Liberty;
- f. Physical injuries and pain and suffering;
- g. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

41. The above paragraphs are here incorporated by reference.

42. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.

43. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

44. Defendants falsely arrested Plaintiff, maliciously prosecuted Plaintiff, used excessive force against Plaintiff, and failed to intervene in each other's obviously illegal actions.

45. Defendants' conduct also deprived Plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution. Defendants presented false evidence against Plaintiff, thereby denying him his right to a fair trial.

46. Plaintiff has been damaged as a result of defendants' wrongful acts

SECOND CAUSE OF ACTION
(Malicious Prosecution – as to Individual Defendants)

47. The above paragraphs are here incorporated by reference.

48. Defendants, acting with malice, initiated a prosecution against plaintiff and caused him to be prosecuted.

49. Defendants did not have probable cause to initiate this proceeding.

50. The criminal proceedings were terminated in plaintiffs' favor.

51. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under New York State common law, and the New York State Constitution.

52. As a result of the malicious prosecution implemented by defendants, plaintiff was damaged.

THIRD CAUSE OF ACTION
(Assault – As to Individual Defendants)

53. The above paragraphs are here incorporated by reference.

54. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

55. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the laws and Constitution of New York State.

56. Plaintiff was damaged by defendants' assault.

FOURTH CAUSE OF ACTION
(Battery – As to Individual Defendants)

57. The above paragraphs are here incorporated by reference.

58. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered them.

59. Defendants used excessive and unnecessary force with plaintiff.

60. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the New York State Constitution.

61. Plaintiff was damaged by defendants' battery.

FIFTH CAUSE OF ACTION
(Respondeat Superior – As to City of New York)

62. The above paragraphs are here incorporated by reference.

63. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

64. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

SEVENTH CAUSE OF ACTION
(42 U.S.C. § 1983 – Municipal And Supervisory Liability - as to Defendant City of New York)

65. The above paragraphs are here incorporated by reference.

66. The City is liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under

which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular occurrence of false arrests by its law enforcement officers, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

67. The City's continuing failure to deter law enforcement misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2012, New York City paid out over \$131 million for the fiscal year, compared to 2011, when it paid out more than \$166 million, and 2010, when it paid \$128 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.² More than 40% of those settlements in 2011 stem from excessive force and false arrest.

68. The widely held assumption is that civil rights lawsuits deter law enforcement misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). "As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts." See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). "It is almost axiomatic that the threat of damages has a deterrent effect (citation

¹ Mayor Michael Bloomberg's preliminary Management Report for FY 2013, available at http://www.nyc.gov/html/ops/downloads/pdf/pmmr2013/2013_pmmr.pdf, see page 6, last visited on June 25, 2013.

² "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010 last visited on June 25, 2013.

omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

69. However, the City of New York has isolated law enforcement officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, or its officers. Civil rights lawsuits against law enforcement officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and law enforcement department action against officers. This “total disconnect” between officers’ liability and official discipline, results in a system where the City pays vast sums to settle false arrests, but does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

70. The City is liable for the damages suffered by plaintiffs in that, after learning of their employees’ violation of plaintiffs’ constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such

policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event.

71. The aforesaid event underlying plaintiffs' factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their law enforcement officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

72. The City has been alerted to the regular use of false arrests by its law enforcement officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions and dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

73. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, towards individual officers repeatedly named in lawsuits, towards incidents repeatedly occurring in the same precinct, towards patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against plaintiff.

74. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated its law department from the discipline of law enforcement officers. Civil

rights lawsuits against law enforcement officers have no impact on the officers' careers, regardless of the officers' responsibility lawsuit liability, even after multiple lawsuits. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and law enforcement department action against officers. Nothing has changed since 1999 and the present regarding this "total disconnect" between officers' liability and NYPD discipline, resulting in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests.

75. The Civilian Complaint Review Board ("the CCRB"), a City oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

76. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints who received no discipline was 47%; in 2007, it was 75%.³ The

³ The NYCLU issued a report in September 2007 on the CCRB detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct: "Mission Failure: Civilian Review of Policing in New York City, 1994-2006", available at: http://www.nyclu.org/files/ccrb_failing_report_090507.pdf, last visited on June 25, 2013.

NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provide so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

77. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the oversight agencies.

78. All of the aforementioned has created a climate where officers lie to prosecutors and in official paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or

policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

79. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiffs’ civil rights, without fear of reprisal.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory damages, in the amount not to exceed jurisdictional limits, to the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
February 28, 2019

Yours, etc.
LIAKAS LAW, P.C.

By:



Nicholas Mindicino, ESQ.

Attorneys for Plaintiff

65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

[illegible]

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
February 28, 2019


NICHOLAS MINDICINO, ESQ